

GUARDIANSHIP OF ALIVIA MOORE

Case Number: 24PG-0032435

This matter is on calendar for further proceedings on a Petition for Appointment of Guardian of the Person of minor, Alivia Moore. The Petition was filed by the minor's paternal grandmother, Maria Souza. Temporary orders were requested but denied by the Court.

The father and paternal grandfather consent to the appointment. The Court previously dispensed with notice to the deceased maternal grandfather. The mother and maternal grandmother were timely served for the prior hearing. There is no proof of service of the Notice of Hearing for the siblings. Insufficient information has been provided to permit the Court to dispense with notice to these parties. Siblings can be served by mail. Prob. Code § 1511(c). For siblings under 12 years of age, service can be on the parent or guardian with whom the sibling resides. Prob. Code § 1460.1. The Court has reviewed the Court Investigator's report, filed May 22, 2024, which recommends the Court deny the Petition. The mother has filed an objection. The Court will inquire whether the child is or may be an Indian child. If Petitioner has reason to know that the child is an Indian child, they must make further inquiry to learn about the child's Indian heritage.

The Public Defender has been appointed as counsel for the minor. **An appearance is necessary by the Public Defender to confirm appointment.**

As for the underlying Petition for Appointment, that matter is continued to **Monday, November 4, 2024, at 8:30 a.m. in Department 42** for further proceedings on the Petition. Petitioner is ordered to file and serve a new Notice of Hearing, along with a copy of the Petition, for the continued hearing date on the parties identified above. In the alternative, if Petitioner cannot serve the parties identified above, the Court will require a declaration explaining why they cannot be served and the efforts of Petitioner to locate and serve the parties identified, in order to permit the Court to dispense with notice to the parties. The clerk is instructed to prepare a separate order appointing the Public Defender. **Warning: Failure to properly effect service or provide adequate basis to dispense with service as to the necessary parties will result in denial of the Petition. Notice is preserved. No appearance is necessary on today's calendar except by the Public Defender to confirm appointment as noted above.**

GUARDIANSHIP OF GABRIEL PEREA AND YESENIA PERIA-JACKSON

Case Number: CVPG17-0029200

This matter is on calendar for hearing on a Petition for Termination of Guardianship filed by the minors' mother, Leticia Perea. The Guardian is the maternal grandmother, Margarita Ingram.

The maternal grandmother/Guardian has been personally served. Proof of Service as to the maternal grandfather, Gabriel's father and paternal grandparents, Yesenia's father and paternal grandmother has been filed, however, it is invalid as Item 2 (address of person serving) and Item 4 (date and place mailed from) were left blank. Petitioner shall file an Amended Proof of Service that contains the necessary on information. The Court finds that service on the siblings is satisfied as they live with the mother. There is no proof of service for Yesenia's paternal grandfather who